

6.	30-2024-01424629 Diaz vs. Ngo	1. Motion-Other (Discharging Guardian Ad Litem) Plaintiff Jasehi Angel Diaz, Guardian Ad Litem for Landon Diaz’s Motion to Discharge Guardian Ad Litem is GRANTED. On October 7, 2024, the Hon. Layne Melzer issued an order appointing Jasehi Angel Diaz as Guardian Ad Litem for Landon Diaz, who was then a minor. The sole basis for appointment was Landon Diaz’ status as a minor. (ROA 11.) Jasehi Angel Diaz has now submitted evidence that Landon Diaz turned 18 years of age on October 26, 2024. Because Landon Diaz has reached the age of majority, there is no need for a guardian ad litem. Moving party to give notice.
7.	30-2025-01520541 Huawei Ma, Trustee of The Liu and Ma Family Trust vs. Li	1. Case Management Conference 2. Joinder 3. Joinder 4. Motion to Dismiss Specially Appearing Defendant, Wenhui Li a/k/a Wenhui Laura Li a/k/a Laura Li (“Li”), moves for an order dismissing or staying this action on the ground of forum non conveniens in favor of the Delaware Court of Chancery, which the forum the parties have designated as the exclusive forum for Plaintiff’s claims. Specially Appearing Defendant, BTinsight, a California corporation (named as DOE 1) joins in the motion to dismiss for forum non conveniens filed by Specially Appearing Defendant Wenhui Li a/k/a Wenhui Li a/k/a Laura Li for all of the reasons set forth in that motion. Specially Appearing Defendant, Help Undiagnosed Children Foundation joins in the motion to dismiss for forum non conveniens filed by Specially Appearing Defendant Wenhui Li a/k/a Wenhui Li a/k/a Laura Li for all of the reasons set forth in that motion. Li contends that Defendant, Breakthrough Genomics Inc. (“BTG”) is a company incorporated in Delaware and headquartered in Irvine, and that its Bylaws contains a mandatory and exclusive forum provision designating the Delaware Court of Chancery as the exclusive forum for litigating a shareholder derivative lawsuit like the instant action, and which directly applies to Plaintiff’s six causes of action for: (1) breach of fiduciary duty; (2) negligence; (3) aiding and abetting torts; (4) accounting; (5) constructive trust; and (6) unjust enrichment. Li asserts that these claims involve internal corporate affairs governed by Delaware law. Li asserts that because the forum selection clause is indisputably valid, mandatory, and applicable to Plaintiff’s claims, Plaintiff has a heavy burden to demonstrate that Delaware’s courts “would be unavailable or unable to accomplish substantial justice” and that Plaintiff cannot do so, or show that enforcement of the clause would contravene a strong public policy in California. Li additionally asserts that California law and public policy mandate that Plaintiff’s claims be decided under Delaware law based on the “internal affairs doctrine.” Li also asserts that Plaintiff’s claims do not implicate any “unwaivable rights” under California law. Li thus contends that the Court should dismiss this case on forum non conveniens grounds, or alternatively, stay this litigation. Plaintiff, Huawei Ma, as Trustee of The Liu and Ma Family Trust, derivatively on behalf of Breakthrough Genomics Inc. (“Plaintiff” or “Ma”) contends that Li failed to inform the